Collective Bargaining Agreement: National Employment Council for the Cleaning and Hygiene Services Industry of Zimbabwe

IT is hereby notified that the Collective Bargaining Agreement set out in the schedule has been registered in terms of section 79 of the Labour Act [*Chapter 28:01*]: —

SCHEDULE

CONSOLIDATED COLLECTIVE BARGAINING AGREEMENT:

Made in terms of the Labour Act [*Chapter 28:01*] between the Association of Cleaning Companies of Zimbabwe (the employers' organisation) of the one part and Progressive Commercial Trades Workers Union of Zimbabwe (PCTAWUZ), Cleaning and Laundry Services Workers Union of Zimbabwe (CALSWUZ) and Fidelity Commercial Trades and Allied Workers Union of Zimbabwe (FCTWUZ), (the Trade Unions) of the other part, being the parties to the National Employment Council for the Cleaning and Hygiene Services of Zimbabwe.

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1. TITLE AND PERIOD OF OPERATION

1. (1) This agreement may be cited as the Cleaning and Hygiene Services Industry Collective Bargaining Agreement.

(2) This agreement shall operate from the first day of the month following its registration until further notice.

2. APPLICATION AND ALTERATION

2. (1) This agreement shall apply to—

(a) all employers in the Cleaning and Hygiene Services Industry; and

(b) all employees in the Cleaning and Hygiene Services Industry in Zimbabwe whose occupations are listed in the Second Schedule.

(2) No employer or employee may waive any provision of this agreement whether or not the said provision creates a benefit to or an obligation on the employer or employee concerned. Each provision shall create a right or obligation as the case may be independently of the existence of other provisions. In the event of any provision of this agreement being inoperative or ultra vires, the powers of the parties or the Act or regulations made thereunder either before or after registration of this agreement under the provisions of the Act, this shall in no way affect the remainder of the agreement which shall in that event constitute the agreement.

3. INTERPRETATION

In this agreement—

"accounting officer (class I)" means an employee, who, wholly or substantially, performs, under supervision, accounting operations for his employer, including the preparation of annual balance sheets and similar periodic financial statements for audit and for submission to partners, directors, shareholders or the Commissioner of Taxes;

"accounting officer (class II)" means an employee who, wholly or substantially, supervises, but is not wholly responsible for, the accounting operations of his or her employer, including the preparation of annual balance sheets and similar periodic financial statements for audit and for submission to partners, directors, shareholders or the Commissioner of Taxes;

"accounting officer (class III)" means an employee who, wholly or substantially supervises, and is responsible for the accounting operations of his or her employer, including the preparation of annual balance sheets and similar periodic financial statements for audit and for submission to partners, directors, shareholders or the Commissioner of Taxes;

"act" means the Labour Act, [*Chapter 28:01*];

"afternoon off" means the time after 1 p.m. on a week-day;

"boiler attendant" means an employee who attends to a boiler and is responsible for its good running and safe operation and ensures that steam is produced by the boiler as required;

"bookkeeper" means an employee who is wholly or substantially engaged in recording any aspect of the financial transactions in the books of the employer or the clients of his or her employer, up to and including trial-balance stage;

"bulk-checker" means an employee who is engaged in filling and dip-checking bulk vehicles as instructed recording quantities.

"buyer" means an employee whose duties are, wholly or substantially, to select and purchase in bulk for stock and for resale merchandise on behalf of his or her employer, and who stipulates the original retail price;

"calendar month" means the period commencing on the first day of a month and ending on the last day of that month;

"canteen supervisor" means an employee who supervises the canteen staff and the distribution and collection of all foods, and may also be responsible for preparing menus and ordering foods;

"canvasser" means an employee who seeks the custom of any person on behalf of his or her employer in the dry-cleaning and laundry industry;

"car-attendant" means an employee who is engaged in cleaning and guarding cars and generally assisting with unskilled jobs, as directed;

"caretaker" means an employee charged by his or her employer with the care and security of premises, plant, equipment and property, but excluding maintenance and repairs;

"cash-collector" means an employee who, in addition to being a light vehicle driver, is usually employed in the collection, under supervision, of debts;

"cashier" means an employee who is responsible, wholly or substantially, for receiving cash on behalf of his employer and for issuing receipts thereof, but does not include a cash-register operator or a self-service till-point operator;

"casual employee" means an employee whose engagement is for a period of not more than six weeks in any four consecutive months;

"checker" means an employee who checks customers, goods into and out of a factory against an invoice to ascertain its correctness;

"Chief messenger" means an employee who, in addition to performing the work of a senior messenger, is engaged in generally supervising the activities of at least ten messengers;

"child labour" means employment of children under the age of 16;

"cleaning and Hygiene Services Industry of Zimbabwe" means, without limiting the ordinary meaning of the term, the industry in which the employers and employees are associated together for purposes of—

(a) Contract cleaning of offices, houses, windows, industrial buildings, public areas and motor vehicles.

(b) Provision of sanitary, laundry and hygiene services; and

(c) Provision of ground maintenance services.

(d) Provision of allied services connected with or incidental to services mentioned in paragraphs (a) to (c) above.

"cleaner" means an employee responsible for keeping offices, homes, hotels or other public areas clean, neat and organized;

"cleaning team leader" means an employee who manages the cleaning team in doing their work at a site and makes sure the assigned cleaning tasks to each team member are done on time effectively and efficiently. He also performs supervisory work on his team members at the site;

"clerical supervisor" means an employee who supervises the work of other clerks and whose duties may include costing, indenting and stock control;

"clerk" means an employee engaged mainly in office work, such as writing, filing or any other clerical work, or who is substantially engaged in routine posting from a hook or source of original entry into a ledger, and whose duties may include the operating of a telephone appliance and who has had more than two years of experience in this occupation;

"coat-hanger maker" means an employee engaged in the making of coat-hangers by machine or hand;

"commercial cleaning" means the services rendered for reward by an employer and his employees who are associated for the purpose of cleaning premises, but does not include the cleaning of premises by employees of the owner or lessee of such premises, or of the agent of such owner or lessee;

"community events assistant" means an employee who assists in the erecting and operation of demonstration and exhibition equipment, under supervision, keeps vehicles clean and assists in daily servicing;

"computer-operator" means an employee who activates and feeds a computer and who has had not less than one year of service as a junior computer-operator;

"computer-programmer" means an employee who writes instructions to instruct the computer and who has had not less than one year of service as a trainee computer programmer;

"computer-programmer supervisor" means an employee who is placed in charge of one or more computer-programmers and who may perform the duties of a computer programmer;

"computer team/shift-leader" means an employee who is placed in charge of a team or shift of computer operators and who may perform the duties of a computer-operator;

"continuous service" means the total period of unbroken service of an employee with the same employer, as prescribed in section 28;

"contract worker" means an employee who is engaged for a specific period, but excludes casual and part-time workers. The period of employment shall be for a period of six months and not more than twelve months;

"council" means the National Employment Council for the Cleaning and Hygiene services Industry of Zimbabwe;

"credit controller" means an employee who is ultimately responsible for the granting of credit facilities and the collection of outstanding debts;

"data capture operative" means an employee who feeds or punches information into a computer;

"day-off" or "days-off" means, in the case of:—

(a) an employee working six days per week, Sunday or that day in the week in lieu of Sunday on which the employee is not normally required to work;

(b) an employee working five days per week, Saturday and Sunday, or those days in the week in lieu of Saturday and Sunday, on which the employee is not normally required to work:

Provided however, that where an employee is normally required to work a six-day week but his employer elects to allow him to work a five-day week while still paying him for the six-day week, the sixth day shall not be considered as a day off;

"day-shift" means a shift which is not a night shift;

"despatch clerk's assistant" means an employee who, in the despatch department or section of an establishment, and under supervision of, and subject to checking by, a despatch clerk, receives, assembles, packs and despatches goods;

"despatch clerk" means an employee who is responsible for the reception of and/or assembly, checking and sorting of goods in preparation for collection or despatch and whose duties may include the selection of goods, in accordance with the order of a customer, the packing of goods, the weighing and marking of parcels and the responsibility for the completion and issue of waybills, consignment notes or other appropriate documents and the proper despatch of goods;

"driver (class I)" means a driver whose duties require him to possess a motor-cycle or motor scooter driver's licence;

"driver (class II)" means a driver whose duties require him to possess a light-vehicle driver's licence;

"driver (class III)" means a driver whose duties require him to possess a heavy-duty driver's licence;

"dry cleaning packer" means an employee employed for the purpose of folding and wrapping any linen or clothes which have been dry cleaned and are ready to be sent to the depots;

"dry-cleaning and washing machine operator" means an employee who operates a dry-cleaning or washing-machine;

"emergency work" means work which must be performed immediately in order to prevent harm to any plant or employees, or plant or employees of a customer, or to near-by persons or properties;

"employee" means any person employed by or working for any employer in the Cleaning and Hygiene Services Industry of Zimbabwe, who receives or is entitled to receive any remuneration in respect of such employment or work;

"employer" means a person who is engaged in or provides employment for persons in the Cleaning and Hygiene Services Industry of Zimbabwe, means any place in which business under the Cleaning and Hygiene Services Industry of Zimbabwe is carried on. An employer includes:

(a) the manager, agent or representative of such person who is in charge or control of the work upon which such other person is employed;

(b) the judicial manager of such person appointed in terms of the Companies Act [*Chapter 24:03*];

(c) the liquidator or trustee of the insolvent estate of such person, if authorised to carry on the business of such person by—

(i) the creditors; or

(ii) in the absence of any instructions given by the creditors, the Master of the High Court.

(d) the executor of the deceased estate of such person, if authorised to carry on the business of such person by the Master of the High Court;

(e) the curator of such person who is a patient as defined in the Mental Health Act [*Chapter 15:12*] (No.15 of 1996), if authorised to carry on the business of such person in terms of section 88 of that Act;

"factory supervisor" means an employee who is responsible for supervising staff and all work carried out in a dry-cleaning and laundry factory, and who is directly responsible to the factory manager;

"filing clerk" means an employee in an office, who works solely on filing and sorting papers and documents;

"foreman of labourers" means an employee who is specifically charged by his employer with the supervision of employees engaged as labourers or shelf-packers;

"fork-lift driver" means an adult employee engaged in operating a fork-lift and whose duties include the driving of a tow-motor with bogies attached;

"gate-keeper" means an employee who is engaged in controlling entry to, and exit from, premises during normal working hours, receiving parcels and other tasks;

"gender-based violence and harassment" means violence and harassment directed at persons because of their sex/gender, or affecting persons of a particular sex/gender disproportionately and includes sexual harassment.

"high-level cleaning" means the process of cleaning areas and surfaces typically located at elevated positions and are challenging to reach using conventional cleaning methods. These areas often include ceilings, walls, windows;

"horticulturist" means a person who provides advice on how to create an environment that your plants can thrive in, such as how and where to plant perennials, what fertilizers to use, and other ways to bring out the best in your garden maintenance services;

"information technology assistant" means an employee who writes instructions to instruct the computer and who has had less than one year of service in this occupation.

"industrial holiday" means any day prescribed as a paid holiday in terms of section 23;

"invoice clerk" means an employee who is responsible for making out invoices;

"junior computer-operator" means an employee who activates and feeds a computer but who has less than one year of service in his occupation;

"landscaper'' means a person who designs, creates and maintains outdoor spaces such as gardens, lawns, and parks, irrigation system installation, pest control, and tree care. He works with a variety of elements such as plants, trees, rocks, water features and lighting to create outdoor spaces that are aesthetically pleasing and functional;

"laundry worker" means an employee who washes, irons and mends canteen table cloths and serviettes, drivers', messengers' and cleaners' uniforms and protective clothing;

"leave-pay" means payment of cash-in-lieu of leave due for the period of paid vacation leave to which an employee is entitled;

"lorry guard" means an employee who is attached to a bulk or packed lorry and who assists a driver with loading and unloading, coupling and uncoupling hoses, sampling, draining, cleaning and servicing vehicles and generally assists a driver and guards the vehicle during the driver's absence;

"machine operator" means an employee engaged in the operation of any machine used in the dry cleaning and laundry industry other than a dry-cleaning or washing machine;

"medical practitioner" means any person who is legally permitted to practise as a medical practitioner in Zimbabwe;

"merchandiser" means an employee, other than a stall attendant employed in or about a shop for the purpose of only

demonstrating goods or merchandise, which may include the display of goods and keeping and controlling stock;

"messenger" means an employee engaged wholly or substantially in any or all of the following duties—

(a) delivering and/or conveying letters, parcels, goods or messages on foot or by means of a bicycle, tricycle or similarly propelled vehicle;

(b) collecting cash in the delivery of cash-on-delivery orders;

(c) operating a duplicating machine, an addressing-machine or a folding machine and using a franking machine;

"night-shift" means a shift the majority of hours of which fall between six o'clock in the evening and six o'clock the morning;

"office" means any place in which accountancy, bookkeeping, clerkage, correspondence, shorthand or typing is performed;

"oiler and belt repairer" means an employee engaged in the oiling and repairing of belts used on line shaft drives of dry-cleaning and laundry machinery;

"order assembler" means an employee who assembles orders;

"ordinary hours" means the hours of work worked by an employee which are not more than 9 hours per day ,not more than 45 hours per week and 195 hours per month.

"overtime" means any time worked outside ordinary working hours;

"packer-checker" means an employee who is engaged in issuing products to invoice, stamping invoices, addressing packages and verifying products supplied against invoices;

"part-time employee" means an employee who is engaged to undertake regular daily work for periods not exceeding a total of five hours per day, or engaged on a weekly basis of not more than thirty hours per week;

"pest control operator" means an employee who uses a spraying machine in or outside a building to spray chemicals in areas infested with pests for the purpose of eradicating them;

"piece-work" means work done under any system by which earnings are calculated wholly on the quantity or output of work done, irrespective of the time spent on such work;

"quality inspector" means an employee who checks the quality of the finished articles;

"receptionist" means an employee engaged mainly in receiving customers or clients preparatory to such customers or clients being attended to by some other employee or by the employer, or who makes appointments with customers or clients on behalf of some other employee or the employer, and whose duties may include the operating of a telephone appliance;

"same employer" in relation to a particular employer, includes, in the case of the sale of any business, the new owner, management or employer, as the case may be, and, in the case of the death of an employer, the legal representative, heir or legatee of that employer and, in the case of insolvency or liquidation of an employer, the trustee or liquidator, provided that such new owner, management, employer, representative, heir, legatee, trustee or liquidator, as the case may be, continues to carry on the business and to employ that employee therein;

"self-service till-point operator" means an employee who registers mechanically, item by item, the accumulated purchases of a customer in a shop type operation, who receives cash for the goods purchased, who may be required to pack the merchandise sold, and who has had one or more years of continuous service in such occupation;

"senior bulk-loading hand" means an employee who, in addition to performing the work of a bulk loading hand,

is engaged in high-speed filling of bulk lorries by meter with ticket-printer head or automatic cut-off, instructed by a bulk checker;

"senior chief messenger" means an employee who, in addition to performing the duties of a chief messenger is responsible for operating a franking machine, opening and sorting all incoming mail, receipt and despatch of all mail from and to depots;

"senior cleaner" means an employee who performs the work of a cleaner and, in addition, is responsible for the control of keys and checking the observance of a company's security instructions;

"senior clerk (class I)" means an employee who is engaged in routine posting from a book or source of original entry to a ledger, and balancing such ledger, or making entries in sales, purchases or similar journals and balancing such journals;

"senior clerk (class II)" means an employee who supervises the work of other clerks and whose duties may include costing, indenting and stock-control;

"senior messenger" means an employee who, in addition to performing the work of a messenger, is engaged in supervising other messengers, acting as a commissionaire and performing other duties;

"servicing hand" means an employee who is engaged in assisting a journeyman in dismantling, stripping, cleaning and assembling plant, pumps or vehicle parts;

"shelf-packer (class I)" means an employee who is principally employed to mark prices, pack and arrange items on shelves;

"shelf-packer (class II)" means an employee who is principally employed to supervise a shelf-packer (class I);

"SHE representative" means an employee who ensures that all health and safety procedures, daily safety task sheets are followed, safe handling of cleaning products and garden equipment is being done according to training

and ensure that all team members wear appropriate clothing and gear to protect themselves from hazardous materials and substances;

"SHEQ officer" means an employee who ensures that all health and safety procedures are followed. Provides proper training on the safe handling of cleaning products and equipment. She also ensures that all team members wear appropriate clothing and gear to protect themselves from hazardous materials and substances. She orders employees protective clothing, recommends appropriate PPE gear, ensures employees go for their scheduled medical checkups, and pre-employment medical checkups;

"Supervisor" means an employee who is responsible for ensuring that all tasks are completed to the highest standard. He inspects work areas and check if any areas have been missed or require additional cleaning. He should provide feedback and coaching to team members whose performance is below the expected standard. The Supervisor communicates with clients to understand their expectations and requirements. He also communicates with team members to ensure everyone is on the same page. Finally, he must also update the management team about the status of cleaning projects. He ensures that all team members are properly trained and equipped with the necessary tools and cleaning products;

"shipping clerk" means an employee who is engaged in shipping and customs clearing, and all other matters pertaining to the import and/or export of goods;

"shop salesman (class I)" means an employee, other than a stall-attendant, employed in or about a shop, who is wholly or substantially engaged in attending to customers in an establishment for the purpose of effecting a sale and/or demonstrating goods or merchandise, excluding taking money and giving change, and/or issuing sales documents, which may include the display of goods and keeping and controlling stock and who has just been

employed and has had less than six months of service in that occupation;

"shop salesman (class II)" means an employee, other than a stall-attendant, employed in or about a shop, who is wholly or substantially engaged in attending to customers for the purpose of completely effecting a sale and/or demonstrating goods or merchandise, involving the taking of money and the giving of change and/or issuing sale documents which may include the display of goods and the keeping and controlling of stock, and who has had less than one year of continuous service in such occupation;

"shop salesman (class III)" means an employee, other than a stall-attendant, employed in or about a shop, who is wholly or substantially engaged in attending to customers for the purpose of completely effecting a sale and/or demonstrating goods or merchandise, involving the taking of money and the giving of change and/ or issuing sale documents, which may include the display of goods and the keeping and controlling of stock and who has had one year of continuous service in the category of shop salesman (class II);

"shop" means any building or portion thereof, structure, room, market-stall, tent, booth or vehicle, or any place which is used temporarily or permanently for the sale therein, thereon or therefrom of goods or merchandise, or for the display of samples, and includes a hairdresser's or barber's salon, but does not include railway refreshment rooms passenger-trains or places licensed to sell intoxicating liquor for consumption on the premises, or any premises licensed under any law for the sale or manipulation of unmanufactured tobacco, or a store;

"shopkeeper" means an employee who is placed in charge of a shop situated away from the managerial control point;

"spotter" means an employee who is engaged in the removal of stains from customers' goods by hand with the use of chemicals;

"stock-taking" means the periodical examination and valuation of all stock or goods in a shop or other place of business;

"task-work" means a stated task which is set by an employer for an employee and which has to be completed as a condition of earning a wage;

"ticket system" means a system whereby an employee is engaged at a wage calculated by reference to the completion of a ticket of an agreed number of days worked or a record based on the number of days worked;

"tracer" means an employee who, acting under instructions of a clerk (class II) or a more senior employee, traces and locates debtors, but who is not involved in any clerical work or the collection of moneys;

"trainee fork-lift operator" means an employee engaged for a learnership period of not more than three months;

"wage" or "salary" means the earnings of an employee but does not include a travelling or subsistence allowance or any payment in respect of overtime, or any bonus or other like benefit;

"watchman" means an employee, other than an investigator, security guard, lance corporal, corporal, sergeant, sergeant-major or security officer, employed in the private security occupation, charged by his employer with ensuring the protection and security of his employer's premises;

"week" means seven consecutive days, commencing at midnight on any day fixed by the employer;

"working day" means any other day other than a day or days off or a holiday;

N.B: Unless inconsistent with the context, words importing the feminine and words importing the singular shall include the plural.

4. GRADING AND WAGES

4. (1) An employer shall place each employee in a grade appropriate to his or her occupation and shall pay a wage/salary to

such employee of at least the minimum amount prescribed for the occupation or category of the employee and no employee shall accept a wage/salary amounting to less that amount;

(2) Any increment of renumeration in respect of such employee shall be based on his or her actual earnings;

(3) On promotion to a higher grade, an employee shall be paid—

(a) not less than the wage which he or she last received prior to his or her promotion; or

(b) at least the minimum wage prescribed for such higher grade whichever is greater.

(4) An employee who is required to perform work in a lower grade than that in which he or she is normally employed shall be paid the wage applicable to the grade or work which he or she normally performs;

(5) An employee who is appointed, in writing to carry out the full responsibilities of a job in a higher grade than that in which he or she is normally employed for a period of at least one full working day, shall be paid the minimum wage applicable to such higher grade for each day spent working in that higher grade.

Provided that the minimum in a higher grade is more than the employee's current salary;

The period allowable for such appointment to act shall not exceed a continuous period of six months. If it exceeds six months, the employee becomes a substantive employee for that post and his grade will have to be regraded;

(6) An employee who is required and permitted to perform work in occupations listed in more than one grade shall be paid the minimum wage prescribed for the highest grade in which such employee is required and permitted to work.

(7) An employer shall not reduce the wage of an employee for any time not worked if the employee was able and willing to work and was present at his or her place of work but the employer was unable, or unwilling to furnish him or her with work;

(8) Where an operation performed by an employee is not specified in the First Schedule—

(a) The employer shall provisionally place the employee in a grade reasonably nearest to his or her job description;

(b) The employer or employee shall notify the Secretary of Council;

(c) The Secretary of Council, after consultation with the employer's organisations and the trade unions shall determine an interim classification of the operation, which shall be subject to ratification by the Council at its next meeting.

Provided that, if the interim classification by the Secretary or the final classification by the Council, places the employee in a grade—

(i) higher than the employee's current grade, it shall be unlawful to pay him lower than the minimum wage prescribed for such higher grade:

(ii) lower than the employees' current grade, it shall be lawful to reduce his or her wage to not less than the minimum wage, prescribed for such lower grade, with effect from the date on which such classification is determined unless the employee refuses to accept the lower grade in which event—

(a) he or she may be given relevant notice of termination of employment; and

(b) during the period of such notice he, she shall be paid the wage which he or she was to receive prior to such termination.

5. ORDINARY HOURS OF WORK

(1) The ordinary hours of work shall not exceed nine (9) hours per day.

(2) Every employee shall be given a lunch and tea break everyday of at least 1 hour and 15 minutes in duration respectively. The hour for lunch shall not be counted as a working hour;

(3) No employer shall permit employees to work for more than 5 hours without a break.

(4) No employer shall permit an employee to work for more than forty-five (45) hours in any one week, without paying the overtime rates set out in Section 7 or giving him or her time off in lieu of such overtime.

6. CONVERSION OF RATES

For the purpose of converting a weekly, fortnightly or monthly wage to—

(1) The weekly equivalent of a monthly wage, the monthly wage shall be divided by four and one third or 4,33; or

(2) The fortnightly equivalent of a weekly wage, the weekly wage shall be multiplied by two; or

(3) The hourly equivalent of a weekly wage the weekly wage shall be divided by the number of hours ordinarily worked in a week; or

(4) The daily equivalent of a weekly wage, the weekly wage shall be divided by five in the case of employees who work a five-day week and by six in the case of employees who work a six-day week; or

(5) The daily equivalent of a monthly wage, the monthly wage shall be divided by twenty-two in the case of employees who work a five-day week and by twenty-six in the case of employees who work a six-day week.

7. PAYMENT OF OVERTIME

(1) An employer may reasonably require an employee to work overtime, and shall, whenever possible give twenty-four hours' notice to such employee, provided that the employee shall be adequately compensated for overtime in cash or time off and be given reasonable amenities to avail himself or herself for the performance of that work.

(2) An employer shall pay one and half times for overtime hours worked by an employee on normal days.

(3) An employer shall pay at double rate for overtime worked by an employee on a day when he is normally off and on public holidays.

(4) An employer can compensate with time off for public holidays worked.

8. DEDUCTIONS

(1) No deduction or set-off of any description shall be made or allowed from any remuneration, other than a bonus due to an employee, except—

(a) where an employee is absent from work on days other than paid holidays or vacation leave, a pro rata amount of his wage only for the period of such absence; or

(b) by a written stop-order for contributions to holiday, benevolent, provident, pension or sick benefit funds, medical-aid societies, insurance policies, bank accounts or subscriptions to a trade union, National Employment Council; or

(c) by written consent of an employee, for money owing for goods supplied by an employer or for repayment of money lent, including interest thereon, if any, by the employer; or

(d) amounts which the employer is compelled by law or legal process to pay on behalf of an employee; or

(e) any amount in terms of subsection (10) of section 30, or subsection (3) of section 34; or

(f) amounts recovered for payments made in error or overpayment of wages; or

(g) where a local authority raises a levy on the employer for fuel consumed by an employee housed in a hostel irrespective of whether the levy is raised as a separate item or as an element in a composite rental, an amount not exceeding twenty cents per month; or

(h) where an employer pays for an employee's accommodation, the amount so paid; or

(i) deductions in terms of subsection (8) of section 25; or

(j) any amount deducted or withheld in terms of subsection (4) of section 34; or

(k) in the case of a cashier, with his written consent, an amount equal to any short fall in money under his control, and for which he is required to account to his employer:

Provided that the amount of such short-fall shall be proved to the satisfaction of the cashier; or

(l) payment for services and supplementary charges legally levied and for lease of land on which to build a room or house; or

(m) deductions in terms of section 36.

(2) Where an employer makes deductions on behalf of a trade union or other third party, he shall remit such deductions to the trade union or other third party concerned not later than the 15th day of the month following that to which deductions relate.

(3) No employee shall be required to make good any bad cheques cashed, unless such cheques are cashed in violation of posted store rules and/or regulations.

9. PAYMENT OF WAGES AND SALARIES

(1) Every employer shall pay wages and salaries to each employee, weekly, fortnightly or monthly, as the case may be, on or by due date.

(2) Payments for overtime, bonuses and allowances shall be made to each employee, weekly, fortnightly or monthly, as the case may be:

Provided that an employee whose contract terminates before his ordinary pay day shall be paid not later than on the next pay day: after the date of termination of his contract.

(3) All remuneration shall be paid either by crediting an employee's Bank Account or by cash, and shall be accompanied by a wage slip showing—

(a) the name and grade of the employee; and

(b) the wage rate; and

(c) the period for which payment is made; and

(d) the total number of hours or days worked; and

(e) the amount of overtime; and

(f) the amount of any other payment, bonus, commission or allowances, irrespective of whether paid to or on behalf of the employee; and

(g) any deductions authorized in terms of Section 8: and

(h) the net amount received by the employee.

(i) No employer shall give, and no employee shall accept any consideration other than cash or cheque in payment of a wage.

(j) If an employee considers that the payment made to him is less than the net amount reflected on the accompanying wage slip, he shall notify his employer at the time when payment is made.

Notwithstanding the provisions of subsection (3), the Council may, on application by an employer, authorize such employer to use some other system of informing his employees of the make-up of their remuneration.

10. EXEMPTIONS AND VARIATIONS

(1) Subject to the provisions of this section, the Council may, upon such terms and conditions as it deems fit in its sole discretion, and upon such terms and conditions as it may determine, grant exemption from, or a variation of, in writing, any of the provision of this agreement to an employer or an employee and it may at any tim likewise vary or cancel such exemption or variation.

(2) Applications for exemption in terms of subsection (1) shall be made, in writing, to the Council, giving reasons therefore and shall be accompanied by—

(a) signed minutes of the works council meeting if any at which parties (workers and management) agreed to apply

for exemption or if there is no works council, proof that workers were consulted and their response thereto;

(b) a copy of the latest audited financial report;

(c) three months bank statement prior to the application date;

(d) a list of employees to be affected and their grades, monthly wages and other elated information as may be deemed necessary by the Committee;

(e) clearly state the period for which the exemption is being sought.

(f) any other documents as the Committee may deem necessary to enable it to make an informed decision;

(3) Any such exemption granted may be withdrawn by the Council, at any time, in its sole discretion.

(4) Any employer who has a performance appraisal system in place and a wage increase agreement negotiated at works council level, may apply to the Exemptions Committee of the council to be exempted from implementing the stipulated percentage increase on existing employees.

(5) Any employer or employee aggrieved by the decision of the Committee may, subject to the laws relating to representation of parties or persons at the council proceedings, appeal to the Labour Court.

11. FIXED-TERM CONTRACT

(1) (a) Any contract of employment which is for a stipulated period shall specify the date of commencement and date of termination thereof;

(b) A contract of employment which is for a stipulated period which shall not be less than six months and flexible up to a maximum period of twelve months shall specify the date of commencement and the date of termination thereof;

(c) The fixed term employment contract may be entered into for a maximum of five times or five years and thereafter, an employee is deemed to have become an employee on a contract of employment without limit of time on the day the fifth fixed term employment contract expires.

(2) For the avoidance of doubt, the following shall be the categories for fixed term contract employees:

(a) employees whose contracts of employment are longer than contracts for casual work but less than six months;

Provided that the employer notifies the Council of the existence of such contracts.

(b) employees whose contracts of employment are longer than six months and not more than twelve months at any given time.

(c) contracts for casual work or hourly work.

(3) A contract worker shall be paid the cash equivalent of any leave accrued in terms of this agreement *in lieu* thereof at the terminating date and if taken during the course of duty, it has to be time-off.

Provided that where a contract worker is employed for a period in **excess of 1-year**, annual leave may be taken in accordance with the terms of this agreement.

(4) Remuneration of a contract worker shall be as follows—

(a) in the case of a worker engaged on a fixed term contract, he shall be paid at least the minimum rate laid down in the NEC Agreement for his job, together with all appropriate allowances, in accordance with the terms of this agreement.

12. PIECE-WORK, TASK-WORK, WORK ON A TICKET SYSTEM AND HOURLY WORK

(1) No employer shall give out, and no employee shall perform work on—

(a) Piece-work basis; or

(b) Task-work basis; or

(c) Ticket system basis

(2) No employer shall engage an employee on terms that the employee will be paid only for the hours that such employee actually works—

(a) On terms that prohibit such employee from being employed by another employer or on his or her own account, during the hours when he or she is not working for the first mentioned employer;

(b) If the effect of such contract is that in any consecutive period of two months the employee earns less than the minimum remuneration or wage fixed in a collective bargaining agreement as the minimum rate of remuneration or minimum wage for the undertaking or industry, and grade and type of occupation governed by that collective bargaining agreement, in which event the employee concerned shall be entitled to be paid the difference between what he or she has earned in that period of two months and one month's remuneration or wage;

(c) If such contracts are prohibited by this collective bargaining agreement.

13. TIME AND WAGE RECORDS

(1) Every employer shall keep a record of all employees showing the following particulars—

(a) name in full and I.D. particulars;

(b) occupation and grade;

(c) number of daily hours worked;

(d) rate of wage or salary;

(e) amount due for ordinary time worked;

(f) hours of overtime worked;

(g) amount due for overtime;

(h) gross total of ordinary and overtime wage or salary;

(i) deductions (specify);

(j) net wage or salary due;

(k) signature of employee for receipt of wage or salary where it is paid in cash.

14. SPECIAL PROVISIONS: COMMISSION-WORKERS

(1) A commission-worker shall be paid such commission and on such a basis as may be agreed with his employer in writing:

Provided that, if the commission paid to any commission-worker, within normal working hours of work in any one month, is less than the minimum wage for his grade, or, where applicable, the part-time equivalent thereof, the employer shall pay to such a commission-worker, a further amount to bring his total remuneration up to at least the appropriate minimum wage or the part-time equivalent thereof.

(2) For all other purposes of these regulations, a commission-worker shall be deemed to be earning the minimum wage for his grade.

15. COOKED MEALS

(1) Where an employer supplies meals at a cost, he shall display the cost of such meals in a prominent position in the canteen.

(2) When the provision of meals is a benefit to the employees, then they do not have to pay for those meals.

16. OUTSIDE WORK

(1) No employee, other than a casual employee, shall solicit, take orders for, undertake or perform any work of a similar capacity to that in which he is normally employed, on his own account or on behalf of any other person or firm, for gain, without the written consent of his employer.

17. SUBSISTENCE, ACCOMMODATION AND TRAVEL ALLOWANCES.

(1) An employee, other than those referred to in subsection (3), who is required to work more than twenty-five kilometres from his normal place of work, which necessitates his sleeping away from

allowance approved by the employer in consultation with the employee to provide for—

(a) all necessary proved travelling and subsistence expenses; or

(b) unproved expenses—

(i) where neither accommodation nor food is provided, an amount of ten United States dollars per day;

or

(ii) where food is provided, an amount of six United States dollars per day; or

(iii) where accommodation is provided but not required, an amount of six United States dollars per day.

(2) Where transport is required to convey an employee referred to subsection (1), the form of transport to be used shall be mutually agreed upon by the employer and the employee, and payment shall be as follows—

(a) where public transport is used, an employee shall be paid the cost of such transport; and

(b) where an employee uses his own vehicle, he shall be paid a rate per kilometre which shall be mutually agreed upon:

Provided that an employee travelling outside his ordinary hours of work shall not be paid for such time spent in travelling, unless mutually agreed upon between such employee and his or her employer.

18. VACATION LEAVE

(1) The provisions of this section shall not apply to casual employees.

(2) If the services of an employee who has completed two months of continuous service is terminated, for any cause whatsoever, he or she shall be paid two and a half days' pay for each month of such service.

(3) An employee shall accumulate vacation leave at the

rate of two and a half working days for each month of continuous service subject to a maximum accrual of ninety days' paid leave. No employer shall deny an employee to proceed on vacation leave after the employee has accrued the maximum ninety days.

Provided that no employee shall be entitled to take vacation leave in his or her first year of continuous service, unless the employer otherwise agrees.

(4) An employee may take a portion of any vacation leave accrued to him or her and shall retain his or her right to any vacation leave accrued but not taken.

(5) An employee shall be entitled to proceed on vacation leave within six weeks of his or her application thereof:

Provided that—

(a) where undue hardship would be caused to the employer, the employee shall be entitled to proceed on vacation leave within nine weeks of his or her application thereof;

(b) where an establishment has an annual shut-down, an employee may be required to take his or her vacation leave during such shut-down;

(c) an employee engaged in work within a seasonal peak may be required to take his or her vacation leave during the off-season.

(6) An employer shall be entitled, on giving one month's written notice, to require an employee to proceed on his or her accrued vacation leave, or any portion thereof, at any time convenient to the employer.

(7) An employee who has accumulated vacation leave may, with the consent of his or her employer, elect to be paid cash in lieu of his or her taking such leave.

(8) An employee proceeding on vacation leave shall, on request, be paid his or her wage up to date, and his or her current wage and allowances for the period of such leave, prior to his or her going on leave.

(9) Any period of leave taken by an employee in terms of this section, or any additional leave granted by the employer, whether paid or not, or any sick-leave taken in terms of section 24, shall not be counted as continuous service for the purpose of calculating such leave.

(10) An employee who becomes ill or is injured during a period of vacation leave may cancel his or her vacation leave and apply for sick leave.

(11) For the purpose of calculating any period of leave or pay in lieu of leave, a year shall be reckoned from the date of which an employee commences service with an employer

(12) For the purpose of leave-pay, the pay for one day shall be calculated by dividing the employee's current wage by thirty (30).

The leave-pay of an employee shall be calculated on his or her current wage at the time of proceeding on such leave.

(13) An employee, whose service is terminated for any cause whatsoever, shall be paid the cash equivalent of any leave which he or she has accrued and the amount of such payment shall be based on his or her current wage.

(14) If an employee is absent from work because of illness or any cause beyond his or her own control, proof of which shall rest on him or her, such period of absence may be offset against any vacation leave due to the employee:

Provided that, in the event of sickness, the employer and the employee shall have first complied with the provisions of section 24.

19. SPECIAL LEAVE

(1) Special leave on full pay not exceeding twelve days in a calendar year shall be granted by an employer to an employee—

(a) who is required to be absent from duty on the instructions of a medical practitioner because of contact with an infectious disease;

(b) who is subpoenaed to attend any court in Zimbabwe as

a witness;

(c) who is required to attend as a delegate or office-bearer at any meeting of a registered trade union representing employees within the undertaking or industry in which the employee is employed;

(d) who is detained for questioning by the police;

(e) on the death of a spouse, parent, child or legal dependant, mother-in-law, father-in-law and siblings.

(f) on any justifiable compassionate ground.

(2) Special leave days are not accruable.

20. PAID EDUCATIONAL LEAVE

(1) Paid educational leave may be granted to an employee on conditions agreed to between the employer and employee.

(2) In order for an employee to qualify for paid educational leave, he or she should undertake a programme that is in line with his or her duties, and it shall be the duty of the employer to approve whether the programme to be undertaken by the employee is appropriate for the employee. If the employee so, wishes to continue in undertaking a programme that is not in line with his or her duties, the employer may release the employee on paid or unpaid leave.

(3) The employer shall determine the number of paid educational leave and the spacing thereof.

(4) For the avoidance of doubt, the attainment of qualification of an employee shall not automatically result in promotion of the employee.

21. MATERNITY LEAVE

(1) Unless more favourable conditions have otherwise been provided for in any employment contract or in any enactment, maternity leave shall be granted in terms of this section for a period of ninety-eight days on full pay to a female employee.

(2) On production of a certificate signed by a registered medical practitioner or State Registered Nurse certifying that she is

pregnant, a female employee may proceed on maternity leave not earlier than the forty-fifth day and not later than the twenty first day prior to the expected date of delivery.

(3) Any maternity leave requested in excess of the limits prescribed in this section may be granted as unpaid maternity leave.

(4) Unless the employer grants sick leave for medical reasons other than maternity, sick leave may not be granted once paid maternity leave has begun.

(5) During the period when a female employee is on maternity leave in accordance with this section, her normal benefits and entitlements, including her rights to seniority or advancement and the accumulation of pension rights, shall continue uninterrupted in the manner in which they would have continued had she not gone on such leave, and her period of service shall not be considered as having been interrupted, reduced or broken by the exercise of her right to maternity leave in terms of this section.

(6) A female employee who is the mother of a suckling child shall, during each working day, be granted at her request at least one hour or two half-hour periods, as she may choose during normal working hours, for the purpose of nursing her child, and such employee may combine the portion or portions of time to which she is so entitled with any other normal breaks so as to constitute longer periods that she may find necessary or convenient for the purpose of nursing her child.

(7) Notwithstanding subsections (6) and (10), the grant of breaks during normal working time to a female employee for the purpose of nursing her child shall be made in accordance with all the exigencies of her employment and nothing done to prevent any disruption of normal production processes or any interference with the efficient running of an undertaking or industry shall be held to be in contravention of subsection (6).

(8) A female employee shall be entitled to the benefits under subsection (6) for the period during which she actually nurses her child or six months, whichever is the lesser.

(9) A female employee who encounters any form of illness

during the period of maternity leave shall cancel the maternity leave and apply for sick leave instead.

(10) Any person who contravenes this section shall be guilty of an unfair labour practice.

22. WEEKLY REST

Weekly rest shall be granted to employees at the rate of twenty-four hours of rest each week, either on the same day of every week or on a day agreed by the employer and employee.

23. INDUSTRIAL HOLIDAYS

(1) All days declared in terms of the Public Holidays and Prohibition of Business Act [*Chapter 10:21*], as public holidays shall be industrial holidays:

Provided that, where a public holiday is moved to the following Monday because it would otherwise fall on a Sunday, that Sunday shall not be regarded as an industrial holiday for the purposes of this agreement.

(2) Subject to the provisions of subsection (3), every employee shall be granted leave of absence on industrial holidays and shall be paid his normal daily wage for every industrial holiday.

(3) An employer may request an employee to work on an industrial holiday, in which event he or she shall either—

(a) with the consent of the employee, grant the employee leave of absence on another day instead of the industrial holiday, and pay him or her not less than his or her daily wage in respect of the industrial holiday and that other day; or

(b) where an employee consents to work on a public holiday he or she shall be paid not less than twice his or her current remuneration for that day, whether or not that day is one on which he or she would otherwise have been required to work.

24. BENEFITS DURING SICKNESS

(1) The provisions of this section shall not apply to casual

employees.

(2) If an employee, whilst at work, claims to be unfit for work, owing to sickness or accident, the employer shall give the employee sufficient time off to enable such employee to be examined by a medical practitioner.

(3) If an employee is incapacitated by sickness or injury, he shall be entitled to receive his current wage and allowances during such incapacity for a period not exceeding ninety-days in aggregate, in any one calendar year of service—

Provided that:—

(i) he is not entitled to any compensation or other payment in respect of such sickness or incapacity under the provisions of the Workers' Compensation Act [*Chapter 269*], or the State Service (Disability Benefits) Act [*Chapter 274*], or any similar enactment relating to compensation;

(ii) his or her sickness was not self-induced or his injury was not wilfully self-inflicted;

(iii) he or she produces a medical certificate to justify such absence for any period in excess of three working days;

(iv) not more than ten days paid sick-leave in any one calendar year shall comprise uncertified periods of three days or less;

(v) such paid sick-leave shall not be cumulative from one year to another; and

(vi) such sick-leave shall not be considered as vacation leave.

(4) If, during any one-year period of service of an employee, the employee has used up the maximum period of sick leave on full pay, an employer shall, at the request of the employee supported by a certificate signed by a registered medical practitioner, grant a further period of up to ninety days' sick leave on half pay where, in the opinion of the registered medical practitioner signing the certificate, it is probable that the employee will be able to resume duty after such

further period of sick leave.

(5) An employee shall not be entitled to any additional sick-leave in terms of subsection (4)—

(a) if he or she is entitled, in terms of the Workers' Compensation Act [*Chapter 269*], or in terms of the State Service (Disability Benefits) Act [*Chapter 274*], or any similar enactment relating to compensation, to any compensation for the incapacity under which he is labouring; or

(b) if his sickness was self-induced or his or herinjury was wilfully self-inflicted.

(6) If an employee is absent from work for more than three consecutive days due to his or her own illness or accident, whether such sick-leave is paid or unpaid, he or she shall cause a medical certificate to be sent to his or her employer to indicate the probable duration of his absence.

(7) Where no medical practitioner is available, a certificate issued by a State registered nurse or a suitably qualified person employed in a State or Municipal clinic shall be accepted in place of a medical certificate:

Provided that, where the period of sick-leave exceeds fifteen working days, the employee shall be required to furnish a certificate issued by a medical practitioner.

(8) The employer shall be entitled to terminate the contract of employment upon fulfilment of the provisions of subsections (3) and (4).

25. CONTRACT AND NOTICE

(1) In respect of every employee, there shall be a contract of employment reduced to writing by the employer and signed both by the employer and the employee at the time of engagement. A signed copy of such contract shall thereupon be given to the employee by the employer.

(2) The contract shall state the occupation, category and the

subcategory in which the employee is employed, his or her wage or salary and details of all allowances and consolidations and shall contain a statement of all regular deductions permitted which are mutually agreed upon at the time of engagement or authorised in terms of this agreement.

(3) In the event of any dispute arising as to the category or subcategory in which an employee had been placed, such dispute shall be referred to the council, whose decision thereon shall be final.

(4) No alteration to a contract shall be enforceable by either party thereto until such alteration has been noted upon the contract and signed by both the employer and the employee.

(5) An employer shall inform every employee, in writing, upon engagement, of the nature of his or her contract, including—

(a) his or her grade; and

(b) his or her wage and when it will be paid; and

(c) provisions for accommodation; and

(d) the period of notice required to terminate the contract of employment; and

(e) hours of work; and

(f) details of any bonus or incentive production scheme in operation; and

(g) provision for benefits during sickness; and

(h) provision for vacation leave; and

(i) industrial holidays; and

(j) code of conduct.

(6) A contract of employment that does not specify its duration or date of termination, other than a contract for casual work or seasonal work or for the performance of some specific service, shall be deemed to be a contract without limit of time provided that a casual worker shall be deemed to have become an employee on a contract of employment without limit of time on the day that his or her period of engagement with a particular employer exceeds a total of six weeks in any four consecutive months.

(7) Whenever an employee has been provided with accommodation directly or indirectly by his or her employer, the employee shall not be required to vacate the accommodation before the expiry of one month after the lapse of the lawfully prescribed minimum period of notice of termination of the employee's employment.

(8) The first four weeks shall be in probationary period, unless the employer and employee agree in writing, to such period being of some other duration, not exceeding ninety consecutive days, and during the probationary period, the contract shall be terminable on twenty-four hours' notice by either party.

(9) If the probationary period of service is terminated during or at the end of such service, the employee shall be entitled to be paid a wage for the period from the commencement of the probationary period to the termination of service.

(10) If the probationary period of service is not terminated during or at the end of such service, the employee shall be deemed to be a full-time monthly paid or weekly paid employee, as the case may be.

(11) An employer or an employee may terminate the contract of service by giving notice in terms of the contract, but such notice shall be—

(a) Three months in the case of a contract without limit of time or a contract for a period exceeding two years;

(b) Two months in the case of a contract for a period exceeding one year but less than two years;

(c) One month in the case of contract for a period exceeding six months but less than one year;

(d) Two weeks in the case of a contract for a period of six months or less in the case of casual work or seasonal work.

Provided that it shall not be necessary for an employee to give such notice where he or she is unable to do so because of some emergency or compelling necessity.

(12) Where a dispute arises between an employer and an employee as to what constitutes an emergency or a compelling

necessity, the dispute shall be referred to the Council.

(13) An employer may discharge his or her obligations by paying an employee his or her full wage and allowances for, and in place of, the period of notice required to be given in terms of this section.

(14) If an employee deserts or wrongfully terminates his or her employment without due notice, the employer shall pay such employee for the period during which he or she duly carried out his or her duties, but the employer may recover from the employee—

(a) in the case of monthly paid employees—

(i) one twenty-second of one month's wages where a five-day week is worked:

(ii) one twenty-sixth of one month's wages where a six-day week is worked;

(b) in the case of weekly paid employees:—

(i) one-fifth of one week's wages where a five-day week is worked;

(ii) one-sixth of one week's wages where a six-day week is worked; for every working day which the employee should serve under notice but does not so serve:

Provided that—

(a) the employer shall be obliged to take all reasonable steps to obtain a replacement for such employee;

(b) the amount of damages so recoverable shall not exceed such sum as results from multiplying the current rate of wage for such employee by the number of working days between the time of the desertion or wrongful termination of service and at the time of engagement of a replacement.

(15) An amount recoverable in terms of subsection (15) may be deducted by the employer from any moneys due to the employee by way of wages, leave-pay or otherwise.

(16) When an employer or an employee gives notice of

termination of service, a shorter period of notice may be mutually agreed upon, and shall be in writing.

(17) The provisions of subsections (2) to (5) and (7) to (10) shall not apply to a casual employee.

(18) An employee who has given or received notice to terminate his or her employment shall not be required to take vacation leave during the period of such notice.

(19) Subject to the provisions of subsection (12) no employer or employee shall give notice of termination of service to run concurrently with sick-leave, vacation leave or military or police service.

(20) No employer shall terminate a contract of employment on the exclusive basis of having given adequate notice without an accompanying reason recognised at law justifying termination of the contract.

(21) Subject to the provisions of subsection (12), no employer shall give notice of termination of employment whilst the employee is sick or disabled, unless or until such employee has been absent for a continuous period of not less than forty-five days.

26. CHILD LABOUR

(1) No employer shall employ any person in any occupation:

(a) as an apprentice who is under the age of thirteen years;

(b) otherwise, than as an apprentice who is under the age of sixteen years.

(2) Any contract of employment entered into in contravention of subsection (1), and any contract of apprenticeship with an apprentice below the age of eighteen years which was entered without the assistance of the apprentice's guardian, shall be void and unenforceable against the person purportedly employed under such contract, whether or not (in the case of a contravention of paragraph (b) of subsection (1)) such person was assisted by his or her guardian, or was married or otherwise tacitly or expressly emancipated, but such person may enforce any rights that have accrued to him or her by or under such contract.

(3) A person under the age of fifteen years but not younger than thirteen years may:

(a) perform work other than work referred to in subsection (4) at such school or vocational institution that is carried out as an integral part of a course of training or technical or vocational education for which the school or institution is primarily responsible;

(b) perform work in an undertaking, other than work referred to in subsection (4), that is carried out in conjunction with a course of technical or vocational education.

(4) No employer shall cause any person under the age of eighteen years to perform any work which is likely to jeopardise that person's health, safety or morals, which work shall include but not limited to work involving such activities as may be prescribed.

(5) Any employer who employs any person in contravention of subsection (1) or (4) commits an unfair labour practice.

27. GENDER-BASED VIOLENCE AND HARASSMENT

(1) No person shall directly or indirectly act in a manner that amounts to violence and harassment towards another person at the workplace including any action in the course of, linked with or arising out of work:

(a) in the workplace, including public and private spaces where they are a place of work;

(b) in places where the worker is paid, takes a rest break or a meal, or uses sanitary, washing and changing facilities;

(c) during work-related trips, travel, training, events or workplace organised social activities;

(d) through work-related communications, including those enabled by information and communication technologies;

(e) in employer-provided accommodation; and

(f) when commuting to and from work.

(2) No employer shall discriminate against any employee or prospective employee on grounds of sex and gender in relation

to the determination or allocation of wages, salaries, pensions, accommodation, leave or such other benefits.

(3) Every employer shall pay equal remuneration to male and female employees for work to which equal value is attributed without discrimination on the grounds of sex or gender.

(4) Any employer who engages in any action referred to above commits an unfair labour practice.

(5) Notwithstanding anything to the contrary in any employment code or the conditions of service for the employee concerned, any employee who is found after due inquiry by the employer to have engaged on a balance of probabilities in any of the acts for which the employee may be charged for an offence under subsection (2) shall be justifiable grounds for dismissal for that employee whether that employee has been prosecuted or not.

28. CONTINUOUS SERVICE

(1) For purposes of gratuity, continuous service shall be deemed to be broken only by death, resignation, retirement or discharge of the employee concerned:

Provided that, an employee who is discharged and re-engaged by the same employer within two months of such discharge shall be deemed not to have broken his continuous service.

(2) If an employee who is absent from work without permission from his employer is allowed to continue his employment within two months of such absence, he or she shall be deemed not to have broken his or her period of continuous service.

(3) If, upon the change of ownership of an establishment, an employee enters the service of the new owner, or continues his or her employment in the establishment, his or her service with the previous owner shall be reckoned as service with the new owner, and shall be deemed not to have been broken by such change of employer:

Provided that, if, upon the change of ownership of the establishment, an employee is paid by the previous owner gratuity in terms of section 34 in respect of his or her service with that owner, the gratuity payable by the owner on the death, resignation, retirement or discharge of such employee may be reduced by the amount of the

gratuity paid by the previous owner.

29. RECORD OF SERVICE

(1) An employee whose services are terminated, for any cause whatsoever, may request a record of service from his or her employer.

(2) The record of service supplied shall specify the period of service and the occupation in which the employee was employed.

30. PROTECTIVE CLOTHING AND UNIFORMS

(1) Every employer shall supply, free of charge, a water-proof cape, overcoat or other suitable protective clothing to every employee who, in the course of his or her duties is habitually exposed to inclement weather, or such protective clothing as is reasonably required for the operation or occupation in which the employee is engaged.

(2) Protective clothing supplied to an employee shall remain the property of the employer if he or she is responsible for mending, washing and otherwise maintaining such clothing.

(3) Protective clothing supplied to an employee shall become his or her property after three months if he or she is responsible for mending, washing and otherwise maintaining such clothing:

Provided that emblems and insignia provided by the employer to be worn on such clothing shall remain the property of the employer.

(4) Every employer shall supply, free of charge, suitable goggles or face shields to all employees engaged in operations which expose them to glare or the danger of a foreign body entering the eye.

(5) Where articles of food or drink are manufactured, prepared or handled, the employer shall provide, free of charge, to each employee, and shall maintain in a clean state and good condition, suitable overalls and caps of washable material.

(6) Drivers and other employees engaged in the loading, unloading and delivery of goods on or from commercial vehicles shall be provided with adequate protective clothing.

(7) Employees shall wear or use the protective or appliances supplied to them in terms of this section, and the employer shall take all responsible steps to ensure that the protective clothing and

appliances are worn or used by such employee.

(8) Where an employer in an establishment has instituted a colour scheme in coats and overalls fitting in with the colour scheme of his or her establishment, he or she shall supply the required overalls and coats to his or her employees, and shall provide for the laundering of such coats and overalls, at his or own expense.

(9) Every employer who requires his employees to wear uniforms shall supply free of charge such uniforms to his or her employees.

(l0) If an employee loses any clothing or equipment supplied in terms of this section, he or her may be required to refund to the employer the whole or any part of the cost of such lost clothing or equipment and the employer shall make due allowance for fair wear and tear in assessing such cost.

Provided that—

(a) proof of such cost shall be made available to the Council, if required; and

(b) the amount of any refund an employer may be required to make, shall not be more than fifty *per centum* of the employee's monthly wage in any one month, except where the contract of employment is terminated.

(17) Upon termination of an employment contract, the employee shall return all the corporate wear provided by the employer during his or her course of employment. Failure to do so, the employee shall have some deductions done to his or her outstanding salaries.

31. FIRST AID EQUIPMENT

(1) Every employer employing more than ten employees in an establishment shall provide first-aid equipment in a dust-proof container readily accessible to all employees in that establishment, which equipment shall comprise not less than—

(a) Alcohol pads and antiseptic pads;

(b) Band-Aids (all sizes);

(c) Cotton balls and Q-tips;

(d) Elastic bandages;

(e) Adhesive bandages;

(f) Hot and cold packs;

(g) Medical tape;

(h) Small container of sterile water or saline spray.

32. HEALTH AND SAFETY

(1) Each employer is required to comply with provisions of Statutory Instrument 68 of 1990 concerning health and safety in the workplace.

(2) Each employer is required to provide specialised equipment and specialised trained personnel in high-level cleaning so as to ensure safety of the workers, provided the maximum height for high-level cleaning shall be two metres and anything beyond that is not recommended unless the cleaner has undergone specialised high-level cleaning training.

33. REMUNERATION

(1)—

(a) Every employer, having placed each employee in a subcategory appropriate to his or her trade or occupation as provided for in section 4, shall pay to such employees at least the amount prescribed in the Second Schedule as amended from time to time and no employee shall accept an amount less than that prescribed for him or her.

(b) No employer shall discriminate against any employee or prospective employee on grounds of race, tribe, place of origin, political opinion, colour, creed, sex and gender, pregnancy, HIV/AIDS status or, subject to the Disabled Persons Act [*Chapter 17:01*], any disability referred to in the definition of "disabled person" in that Act in relation to the determination or allocation of wages, salaries, pensions, accommodation, leave or other such benefits.

(c) Every employer shall pay equal remuneration to male and female employees for work to which equal value

is attributed without discrimination on the grounds of sex or gender.

(2) Remuneration payable in money shall not be paid to an employee by way of promissory notes, vouchers, coupons or in any form other than legal tender.

(3) Remuneration may be payable in kind only in industries or occupations where such payment is customary, and shall be subject to the following conditions—

(a) any such payment shall be appropriate for the personal use and benefit of the employee and the employee's family;

(b) the value attributed to such payment shall be fair and reasonable;

(c) equipment or clothing required to protect the health and safety of the employee shall not be computed as part of the remuneration of the employee;

(d) no payment shall be made in the form of liquor or drugs;

(e) remuneration in kind shall not substitute entirely for remuneration in money.

(4) Subject to any collective bargaining agreement, wages shall be paid at regular intervals on working days at or near the workplace.

(5) Remuneration shall be paid directly to the employee except as otherwise provided by law or collective bargaining agreement.

(6) All remuneration shall be accompanied by a wage-slip showing—

(a) the name of the employer and employee; and

(b) the sub category of the employee; and

(c) the amount of remuneration and the period in respect of which it is paid; and

(d) where appropriate, the number of days being paid for; and

(e) the component of the remuneration representing any

bonus or allowance; and

(f) details of overtime worked and being paid for; and

(g) full details of deductions being made; and

(h) the net amount received by the employee.

(7) Payments made under any **incentive scheme** shall be accompanied by a wage-slip showing the basis upon which the payment has been calculated.

(8) An employer who operates an incentive scheme shall make available, in writing, to every employee affected thereby a copy of the conditions attaching to the scheme, and shall advise the employee of any amendments which are to be introduced.

(9) No deduction or set-off of any description shall be made from any remuneration except—

(a) where an employee is absent from work on days other than industrial holidays or days of leave to which he is entitled, the proportionate amount of his remuneration only for the period of such absence;

(b) amounts which an employer is compelled by law or legal process to pay on behalf of an employee;

(c) where an employee has received an advance of remuneration due, the amount of such advance, up to an amount not exceeding twenty-five percentum of the gross remuneration owed;

(d) by written stop-order for contributions to insurance policies, pension funds, medical aid societies, building societies and registered trade unions;

(e) by written consent of an employee, for repayment of money lent by the employer on terms that have been mutually agreed to between the parties concerned;

(f) an amount recovered for payments made in error.

(10) The aggregate amount of permissible deductions that may be made from the remuneration of any employee in any pay interval shall not exceed twenty-five percentum of the employee's gross remuneration for that interval.

Provided that upon termination of an employee's service, an employer may deduct from the total remuneration due to the employee an amount equal to any balance which may be due to the employer in terms of paragraph(a), (c), (e) or (f).

(11) After having commenced work, no employee shall be paid less than the wage payable for a full day or shift, unless—

(a) he or she is removed from his working place and sent home for being under the influence of alcohol or drugs or has been suspended in terms of regulations made in terms of the Labour Act, [*Chapter 28:01*]; or

(b) he or she ceases work of his own accord for reasons other than sickness or an accident which is sufficiently serious to justify cessation of work, and which has been duly reported to his immediate superior.

(12) Save with the written consent of the employee, an employer may not alter or reduce his rate of pay.

(13)—

(a) Except when his or her employment has been terminated—

(i) all **basic** earnings and overtime earned by an employee up to the end of each working month shall be paid **by the next pay day**;

(ii) all **allowances** or other like benefits prescribed in this agreement and due to an employee shall be paid **by the next pay day;**

(iii) all **bonus** payments or other like benefits due to an employee shall be paid **by the next pay day;**

(b) if the employment is terminated by the employer, payment of all moneys due shall be made **by the next pay day;**

(c) if the employment is terminated by the employee, payment of all moneys due shall be made **by the next payday;**

34. GRATUITIES ON TERMINATION OF EMPLOYMENT

(1) Subject to the provisions of subsection (4), an employee

who has completed five or more years of continuous service shall, on the termination of such service, irrespective of the circumstances of such termination, be paid a gratuity of not less than the amount derived by multiplying the appropriate percentage of his current monthly wage by the number of completed years of continuous service, as set out in the Third Schedule.

(2) If an employee who has completed five or more years of continuous service dies before receiving a gratuity in terms of subsection (1), there shall be paid to his estate the sum which the employee would have received if his contract of employment had terminated on the day of his death.

(3) Notwithstanding the provisions of subsections (1) and (2), if an employee is a member of a pension fund which provides for the employee, or his dependents, to receive an amount in excess of the employee's own contributions together with interest, then the gratuity payable in terms of this subsection shall be reduced by such excess.

In the event of the benefit due being a pension, or deferred pension, then the value of the pension, or deferred pension, shall be compared with the gratuity payable plus the refund of the employee's own contributions with interest and if the pension or deferred pension, is less than the gratuity and refund of contributions, then the difference shall be paid in cash by the employer.

(4) Notwithstanding the provisions of this section, an employer may—

(a) set off against, and deduct from, any amount payable in terms of this section any sum owed to the employer by the employee or by his estate in terms of a civil judgment in favour of the employer and arising out of theft or fraud committed by the employee;

(b) if, before an amount payable in terms of this section has been paid, the employer has—

(i) laid criminal charge of theft or fraud against the employee; or

(ii) caused a civil summons to be issued, claiming from the employee, or his estate, a sum alleged

to be owed to the employer by reason of theft or fraud committed by the employee;

Withhold payment of the sum specified in the charge or summons, as the case may be, until the charge or claim has been finally determined.

(5) If the court proceedings arising from a charge or summons referred to in subsection (4) lapse, or if, when the proceedings are finally determined, the employer does not obtain civil judgment for the full sum withheld by him in terms of paragraph (b) of that subsection, the employer shall, within three working days thereafter, pay the whole or the balance of that sum, whichever is appropriate, to the employee or his estate, as the case may be, together with interest thereon at the rate of six per centum per annum from the date on which the gratuity should otherwise have been paid.

(6) In this section, "civil judgment" includes an award of compensation or restitution in terms of Part XIX of the Criminal Procedure and Evidence Act [*Chapter 59*].

35. REGISTRATION AND COUNCIL DUES

(1) Every employer in the sector, at the time of coming into operation of this agreement shall, within one month of that date, unless it had already been done, notify the Secretary of his full name, trading name, postal and physical address and a summary of the activities of the undertaking. The dues to be paid shall be paid monthly in arrears falling due at the end of the month in which the wage or salary was earned.

(2) For the purposes of meeting expenses of the Council as referred in clause 23(1) of the Council's Constitution, the employer shall deduct from the basic monthly salary/wage of each employee, 1% and remit such deductions to the Council. This shall not apply to casual employees as they are engaged for a short period.

(3) Of the amount deducted and remitted in terms of this clause, the employer shall also contribute to the Council 1 % of the total basic monthly salary/wage of each of his employees per month. The total monthly contribution by the employer and his employees due to the Council shall therefore be 2 % of the basic monthly salary/ wage of each employee.

(4) The total amount shall be remitted to the Secretary of the Council in full, not later than the fifth day of the following month of deduction, together with the dues remittance form, payroll and any other document prescribed by the Council from time to time.

36. STOPPAGES AND DEDUCTIONS

(1) When so requested by an employee, in writing, in the form prescribed by the trade union, an employer shall deduct from the wage of such employee—

(a) the subscription and life, accident and medical insurance premiums due to the trade union; and

(b) such other contributions to the trade union as may be authorized by the council:

Provided that employers may refuse to make such deductions if it is proved to the satisfaction of the council, that undue influence or coercion has been, or is being, exercised by members of the trade union to compel non-members to become members thereof.

(2)—

(a) any request by an employee to have the subscriptions and life, accident and medical insurance premiums due to the trade union deducted from his wages may be cancelled only on the giving of 1 months' notice in writing;

(b) should an employee give due notice of cancellation but remain in the employer's service, the employer shall note the cancellation on his next return of contributions and premiums to the trade union;

(c) where an employee who has requested that subscriptions and premiums due to the trade union be deducted from his wages and has not cancelled such request and terminates his employment, for any reason, the employer shall ensure that the subscriptions and premia are deducted from his final pay.

37. RETRENCHMENTS

(1) All retrenchment issues shall be handled in terms of section 12C of the Labour Act: [*Chapter 28:01*] as amended.

38. MEETINGS

(1) Subject to the provisions of the Act, this agreement or any other law, an employer may at his discretion permit an employee on request by the employment council to attend employment council meetings, provided that such provision shall not be unreasonably withheld.

(2) Subject to the provisions of the Act, this agreement or any other law an employer may at his discretion permit an employee on request by the union to attend trade union seminars, provided that such provision shall not be unreasonably withheld.

39. COPY OF AGREEMENT

(1) Every employer shall exhibit or make available a copy of this agreement and all amendments thereto in a place easily accessible to every employee.

40. ADMINISTRATION

The Council shall be the body responsible for the administration of this agreement, and may issue to employers and/or employees expressions of opinion not inconsistent with the provisions of the agreement.

41. DECLARATION

The Trade unions and the Employers' organization, having arrived at the agreement set forth herein, the undersigned hereby declare that the foregoing is the agreement arrived at, and affix their signatures hereto.

Signed at Harare this 16th day of June, 2024.

for and on behalf of the Employers Association

E. TARINGA,
Chairperson.

Association of Cleaning Companies of Zimbabwe (ACCOZ)
( )
for and on behalf of the Trade Unions

H. NHUNDU,
Secretary General.

Progressive and Commercial Trades Workers Union of Zimbabwe
(PCTAWUZ)
( )

L. NHUTSVE,
Secretary General.
Cleaning and Laundry Services Workers Union of Zimbabwe
(CALSWUZ),
( )

N. DUBE,
Secretary General.
Fidelity Commercial Trades and Allied Workers Union of Zimbabwe
(FCTWUZ),
( )

J. T. MAWIRE,
Chairman of the Employment Council.
( )

First Schedule

CLEANING AND HYGIENE SERVICES INDUSTRY

PART I GRADING

Classification of occupation in grades

GRADE 1

Bulk-loading hand
Car-attendant
Cleaner
Carpet cleaner
Coat-hanger maker
General labourer

Garden attendant

GRADE 2

Caretaker

Checker

Cook

Depot assistant

Dispatch clerk's assistant

Driver (class I)

Dry cleaning packer

Fork-lift operator

Gate-keeper

Hand-ironer

Invoice clerk

Laundryman

Machine-operator (excluding a dry-cleaning and washing machine operator)

Merchandiser

Messenger

Order assembler

Packer

Packing and dispatch assistant

Senior bulk-loading hand

Senior Cleaner

Servicing hand

Shelf-packer (class I)

Shop salesman (class I)

Store hand

Storeman's or warehouseman's assistant

Watchman

GRADE 3

Cash collector

Driver (Class 111)
Senior Cook
Office machine controller
Package checker
Team leader

GRADE 4
Chief messenger
Collecting agent
Driver (Class 1,11 and IV)
Junior Clerk
Receptionist
Shop salesman (class 11)

GRADE 5
Clerk
Packer and dispatch clerk
Shop salesman (class III)
Secretary

GRADE 6
Cashier
Factory supervisor
Shopkeeper
Storeman or warehouseman
GRADE 7
Senior chief messenger
Head Cook

GRADE 8
Clerical supervisor
Canteen supervisor

GRADE 9

Buyer
Supervisor

GRADE 10
Bookkeeper
Computer operator
GRADE 11
Accounts Clerk
Computer-programmer

GRADE 12
Accounting officer
Credit controller
Operations Officer
Quality inspector

SECOND SCHEDULE (*Sections 2, 3 and 4*)

PART II

1. This schedule shall be deemed to have come into operation on the 1st of March, 2024 to July, 2024.

2. US$75 shall be paid to each employee across the grades per each minimum monthly wage.

3. The difference between the US$75 and the minimum wage shall be paid at the prevailing RBZ rate on the date of payment.

4. All companies that are currently paying salaries in USD above the stipulated US$75 should continue doing so.

Grade	**USD Minimum Monthly Wage**
	Present minimums
1(a)	251.00
*1(b)	259.92
2	266.62
3	276.66
4	285.58
5	295.62
6	303.43

7	312.36
8	330.20
9	356.98
10	381.52
11	408.29
12	462.96

* b

*Employees in grade 1(b) are employees who have completed two or more years of continuous service with the same employer as at 1st July, 2023.

THIRD SCHEDULE (*Section 34*)

GRATUITIES

Length of service of employment	Percentage of monthly wage on termination
Years	**%**
5	5
6	6
7	9
8	11
9	13
10	15
11	16
12	17
13	18
14	19
15	20
16	21
17	22
18	23
19	24
20	25
21	26
22	27
23	28
24	29
25	30
26	31
27	32
28	33

29	34
30	35
31	36
32	37
33	38
34	39
35	40

FORTH SCHEDULE

EMPLOYMENT CONTRACT (*Section 25*)

COMPANY NAME AND ADDRESS

COMPANY LOGO

EMPLOYEE'S NAME

CONTRACT OF EMPLOYMENT

DATE

.....

NAME AND ADDRESS OF EMPLOYER

EMPLOYMENT CONTRACT

Reference is made to our discussion of employment and the following is our offer:

EMPLOYEE'S DETAILS

SURNAME ..... NAME .....

ID……DOB……

CONTACT ADDRESS……

(*You are required to notify management of any change of address)*

NEXT OF KIN.....

ID No: .....

ADDRESS .....
.....
.....

EMPLOYMENT CONDITIONS

I do hereby agree and accept employment on a fixed term contract under the following conditions:

NATURE AND DURATION OF CONTRACT

The fixed term contract shall be for a duration of……... months and shall commence on……and expire on……...

PROBATION PERIOD

You will be placed on probation for…… weeks/months during which management shall be accessing your suitability or otherwise for the job. During such probation period notice to terminate this contract shall be……on either party or cash in lieu of such notice.

JOB TITLE AND GRADE

Your job title shall be……..and in grade……..of the Cleaning and Hygiene Services industry CBA.You will be issued with a job description which shall specify your key duties and responsibilities in this job. You are advised to read and understand the job description as it forms an integral part of this contract of employment**.**

SALARY

Your basic salary shall be paid at the rate of……... (Net)per month and payable after the last day of the month. All Salary Reviews Shall Be In Compliance With The Collective Bargaining Agreements of the Cleaning and Hygiene Services Industry Reached At NEC Level.

ALLOWANCES

All allowances shall be paid in terms of Collective Bargaining Agreement of the Cleaning and Hygiene Services Industry reached at NECCHIZ level and includes a housing allowance of $……and transport allowance of $..... per month.

OVERTIME

This shall be paid according to the provisions of the Collective Bargaining Agreement of the Cleaning and Hygiene Services Industry. Hours worked on a day off or public holidays shall be paid at double your ordinary hourly rate. Hours worked on and over and above ordinary the normal daily hours shall be paid at the rate of one and half times ordinary hourly rate.

DEDUCTIONS

All deductions shall be in terms of the CBA for the sectors as read with the Labor Act as amended and includes 4% of your basic salary for NSSA.

VACATIONAL LEAVE

The Labor Act specifies that vacation leave shall be accrued at the rate of 2.5 days per month adding up to 30 days per annum. Saturdays and Sundays shall be included for the purpose of counting leave days. All members of staff are encouraged to take leave during the course of the year. This leave shall be taken at a time convenient to the establishment and as set out by management. All outstanding leave shall be paid cash in lieu at the end of this contract.

TERMINATION OF CONTRACT

Upon successful completion of the probation period either party shall give at least……weeks/months' notice of intention to terminate the fixed term contract or pay cash in lieu of such period. Notwithstanding the notice required as set out in the above, the contract shall terminate naturally on the expiry day as set out in this contract. The parties may renew the contract on their terms.

HOURS OF WORK

The ordinary hours of work shall not exceed forty-five hours per week and you shall be entitled to at least one day off on a Sunday or any other day in place of Sunday. Any other working arrangement should not exceed the above hours otherwise the balance will be paid as overtime.

GENERAL CONDITIONS OF EMPLOYMENT

You are required to conform to the code of conduct for the National Employment Council for the Cleaning and Hygiene Services, any rules and regulations issued and displayed on the notice board from time to time, instructions whether verbal or written given by the employer or immediate supervisors therefore strictly apply. Any need for clarification or more details about the conditions, you are advised to contact your immediate supervisor. Provided that during your time of employment with……...,you shall not engage yourself into any other employment relationship without the written consent of the employer. You are therefore requested to declare any business interest that you may have elsewhere before you sign this contract.

N.B: In the case where employers are offered contracts of less than 6 months and more than 12 months duration, they should notify the council with relevant justification.

CONFIDENTIALITY

All information gained in respect of the company's affairs, processes and other matters pertaining to the company, its clients or its associates, whether implied or expressed, is confidential and remains the sole property of the company or its clients. Such information and knowledge should not be divulged; either during the term of the fixed contract or after termination of the said contract, to any person or company not authorized to receive such information. The company reserves the right to take legal action in this regard.

We trust that the above conditions of employment are to your satisfaction. If so, please sign and return a copy of this contract to us for submission in our personnel employment record.

Signed at……this……..day of……

Employee's

Name ..... Signature.....

Employer's

Name ..... Signature.....

FIFTH SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE CLEANING AND HYGIENE SERVICES INDUSTRY IN ZIMBABWE

NEC LEVY/DUES MONTHLY RETURNS FORM (Section 36)

Name of Company .....

Contact Details Incl. tel.....
.....
.....

Do not write anything on this line

Levy for the month of ..... Year .....

Number of Employees .....

Employees Contributions ZWG$.....USD$.....

NB: Attach a list of all NEC Employees

Employers Contribution ZWG$.....USD$.....

Total ZWG$ ..... Pop Date.....

Total USD$ ..... Pop Date.....

Previous Month Levy Remitted: Month……..Amount……

Certified Correct Signed By.....

Designation .....

NOTES

- All parts of this form must be completed in duplicate and retain the other copy.
- A copy of this form should be completed for all levies paid to the NEC and to be signed by NEC officials on production of payment as indicated underneath.
- Levies are expressed as 1.0% of each employee's basic wage/ salary and the employer pays the similar amount per each employee to the NEC.
- Payments to be paid direct to the NECCHIZ, A/C No.1000217146 (ZWG) or
- A/C No.1000245883 (USD) Bank: African Century Limited, Branch: Josiah Chinamano, Harare.
- Payments after the 10th of the following month will attract interest at bank rate and the employer shall be responsible for the payment of such interest.
- Proof of payment (POP) and the enterprise's payroll summary should accompany this form to the NECCHIZ for reconciliation purposes of your account and acknowledge of receipt to be made.

.....
GENERAL SECRETARY/ACCOUNTANT

FOR THE ADVANCEMENT OF HARMONY IN THE CLEANING AND HYGIENE INDUSTRY